

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ethan Waterman	Team: Squad #10	CCRB Case #: 202103682	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 06/18/2021 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/18/2022	Precinct: 47		
Date/Time CV Reported Fri, 06/18/2021 8:07 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 06/18/2021 8:07 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Cesar Deleon	01816	945654	WARRSEC
2. SGT DS Alexander Rapp	02234	943719	GVSD GUN REC
3. DT3 Phillip Pena	03923	956156	WARRSEC
4. DT3 Starlin Dominguez	02598	935169	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Cesar Deleon	Abuse: Detective Cesar Deleon damaged § 87(2)(b) s property.	A . Unsubstantiated
B . SGT DS Alexander Rapp	Abuse: Sergeant Alexander Rapp entered § 87(2)(b) in the Bronx.	B . Exonerated
C . DT3 Cesar Deleon	Abuse: Detective Cesar Deleon threatened § 87(2)(b) with the use of force.	C . Exonerated
D . DT3 Cesar Deleon	Abuse: Detective Cesar Deleon threatened § 87(2)(b) with the use of force.	D . Exonerated
E . DT3 Cesar Deleon	Abuse: Detective Cesar Deleon entered § 87(2)(b) in the Bronx.	E . Exonerated
F . DT3 Starlin Dominguez	Abuse: Detective Starlin Dominguez entered § 87(2)(b) in the Bronx.	F . Exonerated
G . DT3 Cesar Deleon	Abuse: Detective Cesar Deleon refused to provide his name to § 87(2)(b)	G . Unsubstantiated
H . DT3 Starlin Dominguez	Abuse: Detective Starlin Dominguez refused to provide his name to § 87(2)(b)	H . Unsubstantiated
I . SGT DS Alexander Rapp	Abuse: Sergeant Alexander Rapp refused to provide his name to § 87(2)(b)	I . Unsubstantiated
J . DT3 Cesar Deleon	Abuse: Detective Cesar Deleon obstructed his shield number.	J . Unfounded
K . DT3 Starlin Dominguez	Abuse: Detective Starlin Dominguez obstructed his shield number.	K . Unfounded
L . DT3 Phillip Pena	Abuse: Detective Phillip Pena obstructed his shield number.	L . Unfounded
M . SGT DS Alexander Rapp	Abuse: Sergeant Alexander Rapp obstructed his shield number.	M . Unfounded

Case Summary

On June 18, 2021, § 87(2)(b) called the CCRB and filed this complaint.

On June 18, 2021, at approximately 6:00 a.m., § 87(2)(b) was at her home at § 87(2)(b) in the Bronx with her friend, § 87(2)(b). Detective Cesar Deleon of the Bronx Warrants Section came to the location with Detective Starlin Dominguez, Detective Philip Pena, and Sergeant Rapp (all of the Bronx Warrant Section) regarding an investigation into § 87(2)(b)'s husband, Ezeanelle Locust. Det. Deleon knocked on the front door and allegedly dented the door and chipped paint (**Allegation A, Abuse of Authority: Property Damaged, Unsubstantiated**). § 87(2)(b) attempted to exit the apartment through the fire escape. Sgt. Rapp descended the fire escape and entered the apartment through an open window (**Allegation B, Abuse of Authority: Entry of Premises, Exonerated**). At the front door of the apartment, Det. Deleon pointed a Taser at § 87(2)(b) and § 87(2)(b) and allegedly said, "If you don't open the door, I'm going to have to use this," or "I will shoot you" (**Allegations C and D, Abuse of Authority: Threat of Force (Verbal or Physical), Exonerated**). Det. Deleon and Det. Dominguez stepped into the threshold of the apartment to handcuff § 87(2)(b) (**Allegations E and F, Abuse of Authority: Entry of Premises, Exonerated**). Det. Deleon, Det. Dominguez, and Sgt. Rapp allegedly refused to provide their names upon § 87(2)(b)'s request (**Allegations H, I, and J, Abuse of Authority: Refusal to Provide Name, Unsubstantiated**). Det. Deleon, Det. Dominguez, Det. Pena, and Sgt. Rapp allegedly did not wear their shields during this incident (**Allegations J, K, L, and M, Abuse of Authority: Obstructed Shield Number, Unfounded**). § 87(2)(b) was arrested on a pair of open I-Cards at the 46th and 47th Precincts (**BR 12**). Both arrests are sealed (**BR 21**).

No BWC exists regarding this incident, as the Bronx Warrants Section was not equipped. § 87(2)(b) provided two videos that depicted portions of the conclusion of this incident (**BR 01-04**). The relevant aspects of this footage shall be discussed below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Cesar Deleon damaged § 87(2)(b)'s property.

The investigation has established the following facts. On June 18, 2021, at approximately 6:00 a.m., Det. Deleon visited § 87(2)(b) with Det. Dominguez, Det. Pena, and Sgt. Rapp. At the time, Det. Deleon was investigating § 87(2)(b), who was § 87(2)(b)'s husband. § 87(2)(b) was wanted on a bench warrant § 87(2)(b).

In her CCRB interview (**BR 05**), § 87(2)(b) said that her metal front door had been dented and that paint had been chipped off due to officers' knocking on the door.

In his CCRB interview (**BR 06**), § 87(2)(b) said that the bottom of the metal front door was dented as if officers kicked it, but noted that officers never kicked the door.

§ 87(2)(b) provided photographs of her front door to the investigation (**BR 07**). The photographs show peeling paint on what is apparently the interior frame of the front door and show that the door does not close flush with the exterior frame.

§ 87(2)(b)'s submitted videos do not capture this part of the incident. In his CCRB interview (**BR 08**), Det. Deleon said that he was the officer who knocked on the door. Det. Deleon never kicked the door and never made any contact with the door beyond knocking. Det. Deleon did not dent the door, nor did he cause paint to chip off.

In his CCRB interview (**BR 09**), Det. Dominguez said he stood behind Det. Deleon while the latter knocked on the door. Det. Dominguez never saw Det. Deleon kick the door and that Det. Deleon never caused any damage to the door in the process of knocking on it.

§ 87(2)(b) alleged that the officers' knocking caused dents and paint to chip off the door. Det. Deleon, who knocked on the door, said that his knocking did not dent the door or cause any paint to chip. § 87(2)(b)'s photos, showed peeling paint and general damage to the door

frame. § 87(2)(g)

It is therefore recommended that **Allegation A** be **unsubstantiated**.

Allegation (B) Abuse of Authority: Sergeant Alexander Rapp entered § 87(2)(b) in the Bronx.

Allegation (E) Abuse of Authority: Detective Cesar Deleon entered § 87(2)(b) in the Bronx.

Allegation (F) Abuse of Authority: Detective Starlin Dominguez entered § 87(2)(b), in the Bronx.

In her CCRB interview (**BR 05**), § 87(2)(b) said that she awoke in her bedroom to someone banging on the door, shouting, “Police! Open up!” When she went to her front door, she saw that officers were already inside her apartment. Officers said that they had come in through the fire escape.

In his CCRB interview (**BR 06**), § 87(2)(b) said that he was asleep at the apartment when he heard officers knock on the door, announce themselves as police, and call for § 87(2)(b) by her first name. Upon hearing that officers were at the door, § 87(2)(b) intended to leave the apartment. § 87(2)(b) looked out the window that led to the fire escape that led to the rear yard of the apartment building. An officer standing at street level yelled at § 87(2)(b) to get back inside the apartment. The knocking on the front door increased in intensity as the officers outside asked § 87(2)(b) who was with her inside the apartment. § 87(2)(b) opened the front door slightly while a latching mechanism kept the door from opening fully. § 87(2)(b) refused to further open the door. § 87(2)(b) told her to open the door. For approximately one to two minutes, § 87(2)(b) yelled at officers to show her a warrant and told officers that she was in a state of undress – she had only put on a bedsheet. § 87(2)(b) stood at the crack in the doorway and could see out the door. Det. Deleon stood on the other side of the front door and pointed a Taser at § 87(2)(b)'s upper torso and face (see **Allegations C and D**). Det. Deleon told § 87(2)(b) and § 87(2)(b) to open the door, and said something to the effect of, “if you don’t open the door, I am going to have to use this” (see **Allegations E and F**). § 87(2)(b) was able to open the door for the officers and walked outside of the apartment. Officers never kicked in § 87(2)(b)'s front door and never entered the apartment through the fire escape. § 87(2)(b) said that none of the officers went inside § 87(2)(b)'s apartment beyond the threshold.

In his CCRB interview (**BR 08**), Det. Deleon said that he received the address of § 87(2)(b) from the Department of Probation regarding the subject of Det. Deleon’s investigation, § 87(2)(b). Det. Deleon conferred with the Department of Probation multiple times regarding § 87(2)(b). § 87(2)(b) assigned probation officer texted Det. Deleon that they had received multiple domestic violence reports regarding § 87(2)(b) and his wife, § 87(2)(b) that had been attributed to § 87(2)(b).

In his DD5 prepared regarding this incident (**BR 10**), Det. Deleon wrote that the address was gained from a domestic incident report filed on April 1, 2021.

Det. Deleon (**BR 08**), Det. Dominguez (**BR 09**), and Sgt. Rapp (**BR 11**) were generally consistent regarding the following events. While Det. Deleon knocked on the door to Apartment § 87(2)(b), Det. Pena radioed that a man was coming out onto the fire escape. Sgt. Rapp followed this man – § 87(2)(b) – down the fire escape and into the apartment. While Sgt. Rapp went down the fire escape, either § 87(2)(b) or § 87(2)(b) opened the front door, at which point Det. Deleon and Det. Dominguez handcuffed § 87(2)(b) at the front door.

In his CCRB interview (**BR 11**), Sgt. Rapp said that § 87(2)(b) generally matched the description of § 87(2)(b). Sgt. Rapp did not independently recall what § 87(2)(b) looked like – Sgt. Rapp knew that § 87(2)(b) matched the description of § 87(2)(b) because Sgt. Rapp had reviewed a photograph of § 87(2)(b) prior to appearing at the location. Sgt. Rapp did not independently recall any pedigree information about the person on the fire escape except that he

was a male. Sgt. Rapp knew he gave commands to § 87(2)(b) likely something along the lines of “Police! Stop! Don’t move!” but did not remember the specifics.

In his CCRB interview (**BR 08**), Det. Deleon said he stepped into the threshold of the apartment, grabbed § 87(2)(b) by the arm, and pulled him out of the apartment. Det. Deleon and Det. Dominguez then handcuffed § 87(2)(b). Det. Deleon never further entered the apartment. Det. Deleon saw Sgt. Rapp enter the apartment through the window and proceed immediately to the front door.

In his CCRB interview (**BR 09**), Det. Dominguez said that he did not remember if he ever went inside the apartment but posited that he may have walked into the apartment’s entry vestibule when he pulled § 87(2)(b) out.

§ 87(2)(b) submitted videos do not capture this part of the incident. An I-Card filed on May 11, 2021 (**BR 12**) listed § 87(2)(b) as a § 87(2)(b)-old Black Hispanic male, 6’ tall, and 170 pounds. In this subset photo of him, § 87(2)(b) has short black hair and stubble on his chin.

The DD5s prepared regarding Det. Deleon’s investigation into § 87(2)(b) (**BR 10**) list him as a § 87(2)(b)-old Black male, 5’11” tall, and 150 pounds with short black hair.

Per New York State Criminal Procedure Law § 120.80 (**BR 13**), In order to effect the arrest, the police officer may, under circumstances and in the manner prescribed in this subdivision, enter any premises in which he reasonably believes the defendant to be present.

§ 87(2)(g)

As such, it is recommended that **Allegations B, E, and F be exonerated.**

Allegation (C) Abuse of Authority: Detective Cesar Deleon threatened § 87(2)(b) with the use of force.

Allegation (D) Abuse of Authority: Detective Cesar Deleon threatened § 87(2)(b) with the use of force.

In her CCRB interview (**BR 05**), § 87(2)(b) said that a bald, light-skinned male officer told her, “I will shoot you.” This officer then pressed a Taser against § 87(2)(b) stomach. An unidentified officer then pushed a Taser against § 87(2)(b).

In his CCRB interview (**BR 06**), § 87(2)(b) said that § 87(2)(b) initially opened the door a crack to allow officers to see in. The officers and § 87(2)(b) directed § 87(2)(b) to open the door, which she did not do. For approximately one to two minutes, § 87(2)(b) yelled at the officers to show her a warrant and complained that she was in a state of undress. § 87(2)(b) stood at the crack in the doorway and could see out the door. When the front door was cracked open, a balding officer pointed a Taser at § 87(2)(b)’s upper torso and face. The balding officer told § 87(2)(b) and § 87(2)(b) to open the door, and said something to the effect of, “if you don’t open the door, I am going to have to use this.” § 87(2)(b) opened the door thereafter. § 87(2)(b) said that no officers ever put a taser against himself or § 87(2)(b).

In his CCRB interview (**BR 08**), Det. Deleon said that, when the front door of Apartment § 87(2)(b) initially opened, he unholstered and pointed his Taser in the general direction of § 87(2)(b) and § 87(2)(b). Det. Deleon said he did so because he could not see § 87(2)(b)’s hands, and that, until § 87(2)(b) was under control, the situation was unsafe. Det. Deleon holstered his Taser once he had control of § 87(2)(b)’s hands.

Det. Deleon never said, “If you don’t open the door, I’m going to have to use this,” or “I will shoot you.” Det. Deleon never pressed his taser against § 87(2)(b) or § 87(2)(b)’s body.

Neither Det. Dominguez (**BR 09**) nor Sgt. Rapp (**BR 11**) ever heard Det. Deleon say “If you

don't open the door, I'm going to have to use this," or "I will shoot you."

§ 87(2)(b)'s submitted videos do not capture this part of the incident.

§ 87(2)(g)

Per Patrol Guide Procedure 221-01 (BR 14), members of service must consider the following criteria regarding the reasonable use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

Per Patrol Guide Procedure 221-08 (BR 15), members of service should only use conducted electrical weapons against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons actually present. The procedure notes that "active resisting includes physically evasive movements to defeat a member of service's attempt at control." Officers are to issue an appropriate verbal warning when feasible.

§ 87(2)(g)

Upon hearing police officers at § 87(2)(b)'s door, § 87(2)(b) tried to climb out the window before being directed to get back in the apartment. § 87(2)(g)

It is therefore recommended that **Allegations C and D** be exonerated.

Allegation (G) Abuse of Authority: Detective Cesar Deleon refused to provide his name to

§ 87(2)(b)

Allegation (H) Abuse of Authority: Detective Starlin Dominguez refused to provide his name to

Allegation (I) Abuse of Authority: Sergeant Alexander Rapp refused to provide his name to

§ 87(2)(b)

In her CCRB interview (**BR 05**), § 87(2)(b) said that, once officers removed § 87(2)(b) from the house, she asked all the officers for their names and that only some of the officers did provide them. § 87(2)(b) did not specify which officers did so and which did not – she did not provide any officer names to the investigation.

This allegation is pleaded to Det. Deleon, Det. Dominguez, and Sgt. Rapp because they were the officers present at the door at the time when § 87(2)(b) allegedly made her request.

In his CCRB interview (**BR 06**), § 87(2)(b) said that § 87(2)(b) asked for the names of all the officers, but they did not provide them. § 87(2)(b) also noted that the three officers at her door tried to speak with § 87(2)(b) but she did not stop yelling to allow them to do so.

In their CCRB interviews, Det. Deleon (**BR 08**), Det. Dominguez (**BR 09**), and Sgt. Rapp (**BR 11**) all said that they did not recall if § 87(2)(b) asked for their names. Both Det. Deleon

and Det. Dominguez noted that, given their previous interactions with § 87(2)(b) § 87(2)(b) § 87(2)(b) knew who they were.

In the two videos she sent to the CCRB, § 87(2)(b) never asks the officers present for their names.

§ 87(2)(g)

It is therefore recommended that **Allegation G, H, and I be unsubstantiated.**

Allegation (J) Abuse of Authority: Detective Cesar Deleon obstructed his shield number.

Allegation (K) Abuse of Authority: Detective Starlin Dominguez obstructed his shield number.

Allegation (L) Abuse of Authority: Detective Phillip Pena obstructed his shield number.

Allegation (M) Abuse of Authority: Sergeant Alexander Rapp obstructed his shield number.

In her CCRB interview (**BR 05**), § 87(2)(b) alleged that none of the officers wore their shields.

In his CCRB interview (**BR 06**), § 87(2)(b) said that all the officers wore shields.

In the first video § 87(2)(b) sent to the CCRB (**BR 01**), it is apparent that Det. Deleon, Det. Dominguez, Det. Pena, and Sgt. Rapp all wear their shields on the outermost layer of their clothing.

The available evidence shows that **Allegations J, K, L, and M are unfounded.**

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one CCRB complaint and has been named as a victim in eight allegations (**BR 16**).
 - § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 17**).
- Det. Deleon has been a member of service for 14 years and has been a subject in one CCRB complaints and two allegations, neither of which were substantiated. § 87(2)(g)
- Det. Dominguez has been a member of service for 17 years and has been a subject in six CCRB complaints and 13 allegations, three of which were cited or substantiated.
 - 201601825 involved a substantiated allegation of offensive language – race and a § 87(4-b) § 87(2)(g) The Board recommended that the NYPD imposed command level instructions.
 - 201809482 involved a substantiated allegation of entry of premises. The Board recommended and the NYPD imposed formalized training.
 - § 87(2)(g)
- Det. Pena has been a member of service for eight years and has been a subject in three CCRB complaints and nine allegations, two of which were substantiated.
 - 201706642 involved a pair of substantiated allegations for a stop. The Board recommended Command Discipline B and the NYPD imposed formalized training.
 - § 87(2)(g)
- Sgt. Rapp has been a member of service for 14 years and has been a subject in eight CCRB complaints and 19 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.

- As of November 16, 2021, the New York City Office of the Comptroller has no record of any Notices of Claim being filed regarding this incident (**BR 18**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 10

Investigator:	<u>Ethan C. Waterman</u>	<u>Inv. Ethan Waterman</u>	<u>04/12/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Eric Rigie</u>	<u>IM Eric Rigie</u>	<u>5/4/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date